



Dora

Department of Regulatory Agencies

Division of Registrations
Rosemary McCool
Director

Health Services Section
Mark Merrill
Section Director

Bill Ritter, Jr.
Governor

January 5, 2011

Barbara J. Kelley
Executive
Director

MAILED CERTIFIED MAIL

Peggy Lindholm, CAC III
[REDACTED]

RE: Complaint initiated by TL
Board Case #2009-003759
Letter of Admonition

Dear Ms. Lindholm:

The Division Director for the Office of Addiction Counselors (Director) reviewed the available material concerning the complaint filed against you by E.P.

After thorough review and discussion, the Director found probable cause to believe you violated C.R.S. sections 12-43-222(1)(g) and issued this Letter of Admonition in accordance with C.R.S. section 12-43-224(3)(d). Specifically, the Director determined you violated the statute regarding dual relationships and boundary violations when you:

- Allowed a client smelling of alcohol to leave the facility and drive; and
- You failed to comply with company policy to hold a client smelling of alcohol at the facility.

By this letter, the Director takes the formal disciplinary action of admonishing you for the conduct specified above, and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. This letter is an open public record and a reportable action to individuals or entities requesting disciplinary information. The Director strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of addiction counseling/psychotherapy in Colorado.

In accordance with CRS 12-43-224(3)(d), the Director advises you that you have the right to make a written request that the Director initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Mark Merrill, Section Director, at the above letterhead address. If you make a timely request, the Director will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with CRS 12-43-224(3)(d), and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

Mark Merrill
Section Director

MM/vm

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